BY ORDER OF THE COMMANDER
UNITED STATES AIR FORCES IN
EUROPE-AIR FORCES AFRICA



UNITED STATES AIR FORCES IN
EUROPE-AIR FORCES AFRICA
INSTRUCTION 36-110

16 JULY 2020

Personnel

ADMINISTRATION OF RESIDENT NON-US CITIZEN PERSONNEL - TURKEY

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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This instruction implements AFPD 36-1, *Appropriated Funds Civilian Management and Administration*. It establishes policy for the employment and management of a resident non-US citizen work force by the U.S. Forces in Turkey paid from appropriated and non-appropriated funds. It outlines the employment arrangement governing this work force and provides for further administrative implementation of valid employment conditions. This instruction does not apply to Air Force Reserve or Air National Guard units. The authorities to waive wing/unit level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See AFI 33-360, Publications and Forms Management, for a description of the authorities associated with the Tier numbers. Submit requests for waivers via AF Form 679, *Air Force Publication Compliance Item Waiver Request/Approval*, through the chain of command to the appropriate tier waiver approval authority, utilizing guidance identified in AFI 33-360. This instruction requires collecting and maintaining information protected by the Privacy Act of 1974 authorized by 5 USC 552(a) and by any applicable Turkish Law on protection of worker's privacy. System of records notice OPM/GOVT-1, *General Personnel Records* (June 19, 2006, 71 FR 35356) applies. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with (IAW) Air Force Instruction (AFI) 33-322, *Records Management and Information Governance Program*, and disposed of IAW Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS). Refer recommended changes and questions about this publication to HQ USAFE-AFAFRICA/A1KC,

Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*; route AF Form 847 from the field through the appropriate functional chain of command. This publication may be supplemented at any level, but all supplements must be routed to the OPR of this publication for coordination prior to certification and approval.

SUMMARY OF CHANGES

This document has been revised and changes include: (1) Change instruction reference to AFPD 36-1; (2) includes tier waiver authorities; and (3) changes organizational symbols to reflect current USAFE-AFAFRICA A-Staff nomenclature.

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1. Terms Explained.

1.1. Resident Non-US Citizen Personnel. Resident non-US citizen personnel are members of a work force under individual employment contracts with the U.S. Forces in Turkey. They fall into one of three categories:

1.1.1. Those who are members of or pay solidarity dues to a recognized Turkish labor union with which the US Forces has concluded a current valid collective labor agreement and who are subject to this labor agreement by virtue of their membership or solidarity status.

1.1.2. Those individuals who are neither members of nor solidarity dues payers to a union with which the U.S. Forces has a current valid collective labor agreement and who are subject to the terms of that labor agreement, by virtue of an individual employment contract.

1.1.3. Those individuals who are subject to the terms of the labor agreement by virtue of occupying an out-of-scope position specified in the labor agreement to which they have been assigned based on an individual employment contract. **(T-2)**

1.2. Collective Labor Agreement. A collective labor agreement is a document outlining employment and pay conditions negotiated between a labor union that is authorized to bargain under Turkish law and the U.S. Forces as employer of the work force at that work site.

1.3. Work Site. The activity or group of activities of the U.S. Forces identified by a separate work site registration number assigned by Turkish authorities.

2. Employment Policies

2.1. Applicability of Local Laws and Practices. Employment by the U.S. Forces will be consistent with local laws and practices as defined in DOD1400.25-M, *Department of Defense*

Civilian Personnel Manual (CPM), and U.S. European Command Instruction 1406.01, *Administration of Civilian Employees in the U.S. European Command Area of Responsibility*.

2.2. Selection for Appointment. Selection for appointment and in-service placement will be made based on qualification standards developed by the U.S. Forces and the application of merit principles. **(T-3)**

2.3. Appointment. Final employment is subject to satisfactory completion of trial periods, medical examinations, and background investigation prescribed by the U.S. Forces. **(T-3)**

2.4. Establishment of Pay and Conditions of Employment. Rates of pay and conditions of employment are subject to negotiation by the U.S. Forces with authorized unions or in the absence of authorized unions, are established by the U.S. Forces based on industry practices for comparable conditions. Authority to establish rates of pay and total compensation levels for all non-US citizen personnel, as defined in **paragraph 1.1.** above, whether negotiated with a recognized union or established by the U.S. Forces, rests at the component commander level (USAFE-AFAFRICA/CC). This authority is carried out by Chief, Personnel Division (USAFE-AFAFRICA/A1K) on behalf of USAFE-AFAFRICA/CC.

2.5. Classification. Pay grades are assigned by the U.S. Forces based on the value of the major duties performed by the employee. **(T-2)**

2.6. Union membership. Members of the resident non-US citizen work force are free to join or not to join a labor union. The U.S. Forces will not subject an employee to reprisal, duress, or adverse action because of his membership or non-membership in a labor union.

3. Administrative Policy.

3.1. Scope of Application. The conditions of employment and pay negotiated or established and published by the U.S. Forces for the resident non-US work force will be recognized and followed by all U.S. Forces activities regardless of source of funds from which that work force is paid. **(T-2)**

3.2. Policy Prerogative. Interpretations and procedural instructions to implement employment and pay conditions will be furnished by the USAFE-AFAFRICA Civilian Personnel Branch (USAFE-AFAFRICA/A1KC) or by the 39th Mission Support Squadron, Civilian Personnel (39 FSS/FSC), as required, upon prior consultation between the two offices and approval by USAFE-AFAFRICA/A1KC. Pay scales reflecting negotiated union pay increases will be completed, prepared and distributed by 39 FSS/FSC.

3.3. Local Policy Supplements. Local supplementation of procedural instructions, where necessary, will be subject to the concurrence of USAFE-AFAFRICA/A1KC through 39 FSS/FSC.

3.4. Approval Requirement for Waiver. Administrative requirements for the resident non-US work force will be met by U.S. Forces Civilian Personnel Offices as outlined in pertinent Air Force or AAFES publications unless exemption from compliance with such requirements is contained in instructions from USAFE-AFAFRICA/A1K or 39 FSS/FSC.

3.5. Processing Personnel Actions. All requests for personnel and position actions will be submitted to the servicing U.S. Forces personnel section or office. Appointments, changes in grade, changes in work or pay status, and separations will be made only by or with the approval of 39 FSS/FSC or USAFE-AFAFRICA/A1K, as required.

SUSAN M. AIROLA-SKULLY, Colonel, USAF
Director, Manpower, Personnel, and Services

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFPD 36-1, *Appropriated Funds Civilian Management and Administration,* 18 March 2019

AFI 33-360, *Publications and Forms Management,* 1 December 2015

AFI 33-322, *Records Management and Information Governance Program*, 23 March 2020

OPM/GOVT-1, *General Personnel Records* (June 19, 2006, 71 FR 35356)

DOD1400.25-M, *Department of Defense Civilian Personnel Manual (CPM),* 3 December 1996

U.S. European Command Instruction 1406.01, *Administration of Civilian Employees in the U.S. European Command Area of Responsibility*

Prescribed Forms

None

Adopted Forms

AF Form 679, *Air Force Publication Compliance Item Waiver Request/Approval*

AF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

AFI—Air Force Instruction

AFMAN—Air Force Manual

AFPD—Air Force Policy Directive

OPM—Office of Personnel Management